PROPOSED AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES:

PUBLIC QUALIFICATION AND REQUIRED CONGRESSIONAL JUDGMENT

Section 1. Eligible Measures and Qualification

A bill or joint resolution that has been formally introduced in either House of Congress and contains substantive operative text is eligible for qualification under this article. A joint resolution proposing an amendment to this Constitution is eligible on the same terms, but nothing in this article alters any requirement of Article V.

For purposes of this article, an eligible individual is a person who has attained eighteen years of age and is either a citizen of the United States or, though not a citizen, owes permanent allegiance to the United States.

An eligible measure becomes qualified when the public qualification record maintained under Section 5 shows that verified, valid, and unexpired support satisfies any one of the following independent requirements:

1. declarations by eligible individuals requesting a final congressional vote on the measure, in a number equal to not less than two percent of the total votes cast for President in the several States and the District of Columbia, according to their final certified election returns, in the presidential election most recently preceding introduction of the measure;
2. resolutions requesting a final congressional vote on the measure adopted by the Legislatures of not less than one-third of the States in existence when the measure was introduced;

3. publicly recorded requests for a final congressional vote on the measure made by the Executive Authorities of not less than two-fifths of the States in existence when the measure was introduced;
4. resolutions requesting a final congressional vote on the measure adopted by the governing bodies of not less than five percent of the general-purpose local governments of the United States, determined by reference to the most recent published United States Census Bureau Government Organization count of general-purpose local governments available when the measure was introduced, whether published annually or as part of the Census of Governments;
5. resolutions requesting a final congressional vote on the measure adopted by the governing bodies of not less than ten percent of the federally recognized Indian Tribes appearing on the most recent official federal list in effect when the measure was introduced; or
6. resolutions requesting a final congressional vote on the measure adopted by the elected legislative bodies of not less than two-thirds of the non-State jurisdictions in existence when the measure was introduced.

For purposes of this article, a general-purpose local government is a county, municipality, township, or equivalent political subdivision exercising general governmental authority for a defined geographic community.

For purposes of this article, a non-State jurisdiction is the District of Columbia or an inhabited territory of the United States possessing an elected legislative body.

For purposes of paragraph 3, the Executive Authority of a State is its Governor or an officer lawfully exercising the powers of Governor under the laws of that State.

A Legislature acting under paragraph 2 exercises a federal constitutional function. Executive approval of a resolution adopted under that paragraph is not required.

Each declaration, resolution, or request under this section shall identify and apply to one formally introduced measure and one publicly available official text of that measure only.

Support identifying different official texts of the same measure shall not be aggregated toward the same qualification threshold. The official text for which a threshold under this section is first satisfied is the qualified text of the measure for purposes of this article. If two or more official texts first satisfy a threshold simultaneously, the qualified text shall be the one for which the earliest valid, unexpired, and unwithdrawn support then credited to that text was filed. If that rule does not resolve the tie, the qualified text shall be the earliest of those texts in the originating House's official sequence of published texts for the measure.

Each declaration, resolution, or request remains effective for 365 days after it is validly made, subject to Section 5. Before qualification, support may be withdrawn or rescinded by the person or governmental actor that made it. Once a measure has qualified, later withdrawal, rescission, or expiration of support does not terminate the congressional duty created by that qualification.

Each method of qualification is independent. Satisfaction of any one method is sufficient, and satisfaction or failure of any other method neither impairs nor multiplies the congressional duty created by qualification.

Section 2. Legislative Identity and Effect of Qualification

Support under this article shall identify a specific formally introduced measure and a specified publicly available official text of that measure. Support for one measure shall not transfer to another merely because the measures are identical or similar in text.

Each House retains authority to amend a qualified measure. Amendment does not terminate qualification. A final vote does not satisfy this article if the text voted upon, considered in relation to the qualified text, reflects amendments that, taken together, substitute legislation directed to a different legislative subject rather than amend the qualified measure.

If two or more formally introduced measures pending in the same House during the same Congress have identical operative text, a satisfying final vote on passage of one such measure satisfies any then-outstanding duty of that House to conduct a final vote on another such

measure only if the text voted upon also satisfies the preceding paragraph when considered in relation to the qualified text of each other measure whose duty would be satisfied.

Section 3. Required Congressional Judgment

If a measure becomes qualified more than ninety calendar days before the expiration of the Congress in which it is pending, the House in which the measure was introduced shall conduct a final vote on passage of the measure not later than forty-five calendar days after qualification.

The vote shall be by yeas and nays, and the vote of each Member shall be entered on the Journal of that House.

Each House retains authority over the consideration and amendment of a qualified measure, subject to this article.

No rule or proceeding of either House, including an adjournment while a constitutional quorum is present, may postpone a required final vote beyond the applicable period.

Nothing in this article compels either House or any Member to approve a qualified measure, prescribes how any Member shall vote, or alters any vote required by this Constitution.

For purposes of this article, a satisfying final vote is a final vote on passage that satisfies Section 2, is taken by yeas and nays, and has the vote of each Member entered on the Journal of that House. Only a satisfying final vote discharges a duty imposed by this section. A final vote that occurs before qualification shall be credited as satisfying any corresponding duty that qualification would otherwise impose upon that House only if it is a satisfying final vote when considered in relation to the text that later becomes the qualified text.

If the House in which the measure was introduced does not pass the measure upon a satisfying final vote, any duty of that House under this article with respect to that measure is satisfied.

If that House passes the measure upon a satisfying final vote and the other House has not already conducted a satisfying final vote on that measure, the duty of the other House arises upon the later of passage or qualification. For purposes of this article, the measure as passed

shall be deemed pending before the other House upon passage and shall be transmitted to that House forthwith. The other House shall conduct a final vote on passage not later than forty-five calendar days after that duty arises.

If one or more duties imposed by this section remain unsatisfied when their applicable periods expire, the final questions shall become pending by force of this article. At the first sitting thereafter at which a constitutional quorum is present, the House concerned shall put all such questions before proceeding to other legislative business, in such order as that House determines. Absence of a quorum does not satisfy or terminate any duty.

This article imposes no duty beyond the votes expressly required by it.

Section 4. Continuity

Qualification remains effective throughout the Congress in which the duty under Section 3 attaches, notwithstanding adjournment or a change of session.

If an eligible measure first satisfies a qualification threshold during the final ninety calendar days of a Congress, the mandatory-vote duty under Section 3 does not attach in that Congress.

Expiration of a Congress does not recreate or continue a legislative measure in the succeeding Congress.

A declaration, resolution, or request may, when made, authorize its application while unexpired to a measure formally introduced in the immediately succeeding Congress if that measure contains operative text identical to the official text identified by that support. Authorized, unexpired support shall count toward qualification of the succeeding measure on the same terms as support newly given there, but no congressional duty arises unless an eligible measure is introduced and the support credited to one official text of that measure satisfies a threshold under Section 1.

Section 5. Administration and Default Operation

Congress shall establish by law uniform, impartial, auditable, and reasonably accessible procedures for administering and verifying qualification under this article and for maintaining a public qualification record showing, for each eligible measure and each publicly available official text of that measure for which support has been filed, the verified aggregate support credited under each method of qualification.

No law, rule of either House, or administrative procedure may alter an actor class or threshold established by this article, shorten the 365-day period during which valid support remains effective except as expressly provided by this article, make qualification dependent upon discretionary approval by Congress or any officer, impair one method of qualification because another method has failed, or restore indefinite non-consideration after qualification has occurred.

Failure to enact or maintain implementing legislation does not suspend a right, qualification, or congressional duty established by this article.

The default procedures of this section remain available except while an alternative federal filing and verification system established by law is operational, reasonably accessible, and consistent with this article, and resume automatically whenever it is not.

Under the default procedures, support under Section 1 may be filed directly with the Archivist of the United States, the officer lawfully performing the functions of that office, or a federal officer succeeding to the functions assigned by this section.

Any federal filing and verification system operating under this article shall, not later than thirty calendar days after receipt of filed support, verify and credit that support to the public qualification record or issue a written determination stating the objective ground for its rejection.

Under the default procedures, the Archivist or other officer acting under the preceding paragraphs shall receive, preserve, verify, aggregate, and credit records of support to the public qualification record according to objective and uniform criteria.

An individual declaration shall be signed or otherwise authenticated under penalty of perjury and contain information sufficient to verify the declarant's identity, United States nationality, age, and unique identity. Prior voter registration is not required, and no individual may be counted more than once toward qualification of the same measure.

Governmental support shall be credited upon objective verification from official records or other reliable official evidence of the governmental actor's identity and authority and the valid adoption or issuance of the support.

Before qualification, filed support may be withdrawn by authenticated notice or official governmental action of the actor that provided it, as applicable.

Support filed while valid shall not expire solely because verification required by this section remains pending after the date on which that support otherwise would expire. If a timely action under this section challenges refusal, delay, or rejection of filed support, that support shall remain eligible for verification and credit until final resolution of the action. Support preserved under this paragraph counts toward qualification only if and when it is verified and credited to the public qualification record.

Support counts toward qualification when it has been verified and credited to the public qualification record under objective and uniform criteria. A measure becomes qualified automatically when the verified, valid, and unexpired support shown in that record first satisfies a threshold established by Section 1. No additional certification, publication, acknowledgment, or discretionary approval is required.

Once qualification has created a duty under Section 3, later correction, invalidation, or removal of support previously credited to the public qualification record does not retroactively invalidate that qualification or terminate the duty. The corrected record shall govern subsequent qualification calculations and any application of support in a succeeding Congress. Nothing in this paragraph prevents correction of the public record or enforcement of law against fraud or falsification.

An individual or governmental actor whose filed support is adversely affected by refusal, failure to comply with the thirty-day period, or rejection under this section may bring an action in a

court of the United States for declaratory or injunctive relief compelling performance of a nondiscretionary administrative duty imposed by this section or correcting an administrative determination contrary to the objective and uniform criteria required by this article. No court acting under this section may direct how either House or any Member shall vote or supervise congressional debate or amendment.

Section 6. Effective Date

This article shall take effect eighteen months after ratification.

Declaration of Generative AI and AI-Assisted Technologies

During the preparation and revision of this proposed amendment, the author used generative AI tools to assist with drafting support, language refinement, structural editing, internal consistency review, and adversarial testing of the amendment's operation. All substantive constitutional choices, policy judgments, drafting decisions, and final editorial judgments are the author's own. The author reviewed and approved the final text and takes full responsibility for its content.